

106	Chang vs. HIOSSEN, Inc., a California corporation 2025-01535790	Motion for Leave to File Amended Complaint VACATED PER STIP AND ORDER
108	Ruiz vs. Youstina 2025-01489341	1. Motion to Compel Production/Inspection of Documents or Things (ROA 42) 2. Motion to Compel Answers to Special Interrogatories (ROA 43) CONTINUED PER STIP AND ORDER
109	Balt USA, LLC vs. Treadstone Medical LLC 2021-01237081	1. Motion to Seal (ROA 1814) 2. Motion to Seal (ROA 1875) Plaintiff Balt USA, LLC's two motions to seal filed at ROA #1814 and #1875 are GRANTED . Plaintiff's motion at ROA #1814 seeks to permanently seal the following: (1) Exhibits 3-6, 40, 53, 73-74, 80-81, 89, 91, and 114 to the Omnibus Declaration Of Eric Kohan In Support Of Plaintiff Balt Usa, LLC's Opposition To Motion For Summary Adjudication As To The Catheter Access Puncture Tool And Braided Stent (ROA #1812 [Kohan Omnibus Decl. 1]), including ROA #1819, 1826, 1831, and 1832 [additional exhibit volumes to Kohan Omnibus Decl. 1]); (2) Portions of Plaintiff's Opposition to Motion for Summary Adjudication as to the Catheter Access Puncture Tool (ROA #1823), which reference those exhibits; (3) Portions of Plaintiff's Separate Statement of Undisputed Material Facts in Opposition to Defendants' Motion for Summary Adjudication as to the Catheter Access Puncture Tool (ROA #1824), which reference those exhibits; (4) Portions of Plaintiff's Opposition to Motion for Summary Adjudication as to the Braided Stent (ROA #1821), which reference those exhibits; and

- (5) Portions of Plaintiff's Separate Statement of Undisputed Material Facts in Opposition to Defendants' Motion for Summary Adjudication as to the Braided Stent (ROA #1822 and 1867), which reference those exhibits.

Plaintiff's motion at ROA #1875 seeks to seal the following:

- (i) Exhibits 118-119 to the Omnibus Declaration of Eric Kohan in Support of Plaintiff Balt Usa, LLC's Opposition To Motion for Summary Adjudication As To The Electrocautery Device and Tinnitus Stent (ROA #1879 [Kohan Omnibus Decl. 2]);
- (ii) Portions of Plaintiff's Opposition to Motion for Summary Adjudication Regarding the Electrocautery Device (ROA #1870), which reference those exhibits;
- (iii) Portions of Plaintiff's Separate Statement of Undisputed Material Facts in Opposition to Defendants' Motion for Summary Adjudication as to the Electrocautery Device (ROA #1872), which reference those exhibits;
- (iv) Portions of Plaintiff's Opposition to Motion for Summary Adjudication as to the Tinnitus Stent, which reference those exhibits; and
- (v) Portions of Plaintiff's Separate Statement of Undisputed Material Facts in Opposition to Defendants' Motion for Summary Adjudication as to the Tinnitus Stent (ROA #1873), which reference those exhibits.

"Unless confidentiality is required by law, court records are presumed to be open." (Cal. Rules of Court [CRC], rule 2.550(c).) "The court may order that a record be filed under seal only if it expressly finds facts that establish: (1) [t]here exists an overriding interest that overcomes the right of public access to the record; (2) [t]he overriding interest supports sealing the record; (3) [a] substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) [t]he proposed sealing is narrowly tailored; and (5) [n]o less restrictive means exist to achieve the overriding interest." (CRC, rule 2.550(d).) However, this rule "does not apply to records that are required to be kept confidential by law" (CRC, rule 2.550(a)(2)), such as "[a] document which is protected by the lawyer-client privilege" (*Huffy Corp. v. Super. Ct.* (2003) 112 Cal.App.4th 97, 108).

Overriding interests include a substantial probability that the movant's business, competitiveness, and privacy rights will be adversely affected if the record is not sealed. (See, e.g., *Overstock.com, Inc. v. Goldman Sachs Group, Inc.* (2014) 231 Cal.App.4th 471, 503, internal quotes & citations omitted [right to privacy "extends to one's confidential financial affairs" and "embraces confidential financial information in whatever form it takes, whether that form be tax returns, checks, statements, or other account information"]; *McGuan v. Endovascular Technologies, Inc.* (2010) 182 Cal.App.4th 974, 988-989 [affirming order granting motion to seal documents containing trade secrets]; see also *Nixon v. Warner Communications, Inc.* (1978) 435 U.S. 589, 598 [recognizing sealing appropriate for "sources of business information that might harm a

litigant’s competitive standing”]; *Hecht, Solberg, Robinson, Goldberg & Bagley LLP v. Super. Ct.* (2006) 137 Cal.App.4th 579, 594 [“Although corporations have a lesser right to privacy than human beings and are not entitled to claim a right to privacy in terms of a fundamental right, some right to privacy exists”]; *Universal City Studios, Inc. v. Super. Ct.* (2003) 110 Cal.App.4th 1273, 1286 [denying motion to seal due to public disclosure, but finding that normally, sealing is appropriate where “information involves confidential matters relating to the business operations of defendant” and “public revelation of these matters would interfere with its ability to effectively compete in the marketplace”].)

The moving party bears the burden of “(1) identifying the specific information claimed to be entitled to such treatment[and] (2) identifying the nature of the harm threatened by disclosure.” (*H.B. Fuller Co. v. Doe* (2007) 151 Cal.App.4th 879, 894 [additionally, the court must also “(3) identify[] and account[] for countervailing considerations”].) “This means at a minimum that the [moving] party . . . must come forward with a specific enumeration of the facts sought to be withheld and specific reasons for withholding them.” (*Id.*) Indeed, CRC rule 2.551(b)(1) requires that a motion to seal “must be accompanied by a memorandum and a declaration containing facts sufficient to justify the sealing.”

Here, Plaintiff submitted declarations attesting that the material sought to be sealed contain highly sensitive, non-public information that, to Plaintiff’s knowledge, has not been made public. The information includes internal business strategies, including the status of Balt’s current development efforts, and proprietary operational data; marketing specifications, market research and clinician feedback compiled at significant corporate expense to guide the ongoing design of Balt’s products; confidential operational data including, but not limited to, its quality systems, research and development, manufacturing, and finance systems, along with its confidential business plans; confidential detailed description of products, their proposed use and proposed indication, information about their intended user, and the competitive environment; pricing information relating to various products; compensation amount Balt pays its consulting physicians; confidential information about Balt’s consultants, including involvement and contributions to Balt’s products; and research and development projects, active innovation projects, potential R&D projects and R&D organizational details. (ROA #1806, passim; ROA #1847, passim.)

Accordingly, the Court finds that Plaintiff has met the procedural requirements for the instant motion and sufficiently demonstrated overriding interests support sealing the requested items.

The Court notes that an unredacted version of Plaintiff’s Opposition to Motion for Summary Adjudication as to the Tinnitus Stent has not yet been filed conditionally under seal, unlike all the other items sought to be permanently sealed. Plaintiff is **ORDERED** first file an unredacted version of this opposition conditionally under seal within three (3) court days of this ruling.

		Within (5) court days of this ruling, Plaintiff is also ORDERED to submit revised proposed orders on the two instant motions, setting forth the information required by CRC rule 2.550(e)(1)(A), as well as identifying the specific filings—by pleading title and ROA number—that are to be sealed in accordance with this ruling. Plaintiff shall give notice.
110	Quiros vs. Feals, Inc. 2026-01557178	Motion to Dismiss/Seal On 5/26/2026, Plaintiff Eric Quiros filed a “Motion to Approve Dismissal and to Seal Portions of: (1) Declaration Of Plaintiff Eric Quiros In Support Of His Request For Dismissal Pursuant To CRC 3.770; (2) Declaration Of Scott J. Ferrell In Support Of Request For Dismissal Pursuant To CRC 3.770.” (ROA #29.) On 6/18/2026, the Court signed and entered an Order of Dismissal dismissing the matter with prejudice as to Plaintiff’s individual claims and without prejudice as to the putative class. (ROA #34.) Therefore, the motion to dismiss portion of the instant motion is now MOOT. The Court GRANTS Plaintiff’s motion to seal the unredacted versions of the referenced declarations, which were lodged with the Court in accordance with Plaintiff’s Notice of Lodging filed at ROA #21. The motion is narrowly tailored and seeks to seal only the amount of the settlement reached between Plaintiff and Defendant in this case. The Court finds that Plaintiff has proved facts that establish: (1) there exists an overriding interest that overcomes the right of public access to the record; (2) the overriding interest supports sealing the record; (3) a substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) the proposed sealing is narrowly tailored; and (5) no less restrictive means exist to achieve the overriding interest. (Cal. Rules of Court [CRC], rule 2.550(d).) Accordingly, the Court ORDERS that the unredacted versions of the Quiros and Ferrell Declarations, lodged in accordance with the notice filed at RO A#21, be placed under permanent seal. Plaintiff shall give notice.